FRONTEX

Warsaw, 28/10/2022

FINAL SIR REPORT

13489/2021 – SIR Cat. 1 – FSC Aerial Surveillance 2021

SI-Handler: Fundamental Rights Office

Key Points

Incident reported:
Frontex Surveillance Aircraft recorded the Libyan Coast Guard shooting at migrants during a search and rescue operation conducted in the Libyan Search and Rescue Region (SRR) on 15/09/2021.

Possible violation of fundamental rights enquired:

- Human dignity (Article 1 of the Charter of Fundamental Rights of the European Union),
- Right to life (Article 2 of the Charter of Fundamental Rights of the European Union)
- Right to integrity of the person (Article 3 of the Charter of Fundamental Rights of the European Union),
- Prohibition of inhuman and degrading treatment (Article 4 of the Charter of Fundamental Rights of the European Union)
- The obligation to conduct rescue operations in accordance with international human rights standards and maritime law obligations

Party allegedly involved in the incident: Libyan officers, Frontex Surveillance Aircraft (as observer).

Conclusion and impact:
Based on video evidence collected by the FSA which monitored the incident, the Fundamental Rights Office considers that excessive force was used by the Libyan authorities during the described incident, violating migrants' fundamental rights including to be free from inhuman or degrading treatment. Additionally, the Fundamental Rights Office is concerned about the safety of all rescued migrants upon disembarkation in Libya. In this respect, the Fundamental Rights Office invites dialogue on better coordination of search and rescue (SAR) activities in Central Mediterranean taking into consideration that Libya cannot be considered a place of safety.

Description of the event - Timeline

Operational Area

On 15 September 2021, at 07:45 UTC, the Frontex Surveillance Aircraft Heron 1 detected a blue wooden boat at [redacted] with 20+ migrants on board in the Libyan Search and Rescue Region. The boat had one engine and was travelling with 6kts and course 360°. A LBY PV was in vicinity. (Sighting report sent to Italian, Maltese, Libyan and Tunisian authorities)

At 09:04 UTC, Heron 1 returned to the same vessel monitoring the intervention of the Libyan patrol vessel who had arrived on site attempting to intercept the boat. At the time, Fundamental Rights Monitor [FROM] of the Fundamental Rights Office was present in the monitoring room and followed the incident on the screen together with the European Monitoring Team. The FROM and FRO Serious Incident Team were further provided with the video of the incident for their review showing the following:

The migrant boat attempted to avoid interception and was closely followed by the Libyan patrol vessel. Attempting to stop it, the LCG vessel subsequently manoeuvred around the small boat in circles. For approximately 35-45 minutes, the LCG vessel continued trying to intercept the boat by means of creating waves and the use of a water

hose spraying water in the direction of migrants. Moreover, an individual on board the Libyan patrol vessel at one point during the pursuit was observed holding an item shaped like a pistole, pointing it in direction of the migrant boat and shots, presumably bullets, being fired in the direction of the migrants.

Eventually, the LCG vessel managed to stop the boat and the migrants were made board the LCG vessel at 10:04 UTC.

No information was obtained concerning the port of disembarkation of the rescued migrants.

At 10:37, Frontex Team Leader sent to the Libyan authorities with Italian, Maltese and Tunisian authorities in copy the following message:

"In regards to the sighting FSA[Reporting Tool] sent earlier we would like to inform you that patrol vessel[Operational Area] is shooting into the water close to the migrant boat and using fire hose in their direction. We highly recommend/suggest to NOT use force during SAR operations."

Information collected – Contributors/Entities consulted – Follow-up

SIR 13489/2021 Cat. 1 was launched on 17 September 2021.

Assessment

Conduct of the rescue by Libyan authorities:

- Considering the availability of video evidence, the Fundamental Rights Office considers established that the members of the Libyan Coast Guard used physical force that is not in line with the principles governing the use of force (necessity, proportionality, precaution) putting the lives of the migrants in jeopardy during search and rescue.
- Against this backdrop and several other reports about excessive use of force by Libyan authorities during SAR, including well documented ones (12634/2022 and[Reporting Tool]), the Fundamental Rights Office is concerned about the compliance of Libyan authorities with international human rights law during SAR operations.

Frontex support to SAR activities and considerations regarding disembarkation in a place of safety:

- The Fundamental Rights Office takes note of the timely sharing of information about the migrant boat by Frontex with all relevant MRCCs in the present case. It likewise notes that the initial classification of the sighted migrant boat and overall situation triggered the notification of Libyan MRCC in line with applicable procedures.
- The Fundamental Rights Office commends as good practice the fact that Frontex surveillance aircraft was instructed to stay and monitor the whole course of embarkation by the Libyan Coast Guard which allowed for the collection of evidence underpinning the present SIR.
- The Fundamental Rights Office remains concerns about engagement that result in migrants being brought back to Libya as according to numerous reports issued by international organisations including OHCHR, UNHCR, CoE and Amnesty International, the country cannot be considered as a place of safety for disembarkation.

Final conclusion – Proposals – Lessons learned

Considering the video evidence showing actions by Libyan officers that amount to excessive use of force putting the lives of migrants at risk during SAR the Fundamental Rights Office considers that migrants' fundamental rights guaranteed in articles 1, 2, 3, and 4 of the Charter of Fundamental Rights of the European Union were violated. Furthermore, in the context of:

(i) Several documented cases of abuse during rescue at sea by Libyan authorities including the present SIR;

(ii) the need to balance several fundamental rights concerns during coordination of SAR activities (namely the right to life and identification of place of safety/principle of non-refoulement); and

(iii) the involvement of Libya in SAR operations in Central Mediterranean, which cannot unequivocally be considered as a safe place for the purposes of disembarking rescued migrants,

the Fundamental Rights Office believes that further discussion is needed to better coordinate the SAR operations at sea in pre-frontier areas, in order to minimize risks to fundamental rights of rescued migrants in scenarios where Frontex is involved.

Specifically, the Fundamental Rights Office **recommends** the following:

To Frontex

1. To continue providing SAR support for operations in Central Med using FSAs within the multipurpose aerial surveillance service.;
2. To continue the FSA good practice to stay and continue monitoring, whenever possible, SAR operation conducted by the Libyan Coast Guard;
3. to promote dialogue with/among EU Member States to ensure better coordination of search and rescue activities in Central Mediterranean that takes into account that Libya cannot be considered a place of safety for disembarkation of migrants;
4. to strengthen communication with NGOs operating in the area with assets available for SAR activities.